

Contentious Chamber

Decision on the merits 112/2024 of September 6, 2024

File number: DOS-2020-03924

Subject: Dismissal of a complaint regarding the transfer of personal data to the United States due to a defect in the representation mandate, pursuant to Article 80.1 of the GDPR

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Christophe Boeraeve and Dirk Van Der Kelen, members;

Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Having regard to the law of December 3, 2017, establishing the Data Protection Authority, hereinafter referred to as "LCA";

Having regard to the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

1 The new Internal Regulation ("ROI"), after the amendments made by the law of December 25, 2023, amending the law of December 3, 2017, establishing the Data Protection Authority (DPA), comes into effect on June 1, 2024.

In accordance with Article 56 of the law of December 25, 2023, the new ROI applies only to complaints, mediations, inspections, and procedures before the Contentious Chamber that commenced after this date: <https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur-de-l-autorite-de-protection-des-donnees.pdf>.

Files submitted before June 1, 2024, as in this case, are subject to the provisions of the LCA as they were not amended by the law of December 25, 2023, and the ROI as it existed before this date: <https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur.pdf>.

Decision on the merits 112/2024 — 2/34

Has made the following decision regarding:

The complainant:

X, represented by Noyb – European Center for Digital Rights, hereinafter referred to as "the complainant" or "the complaining party";

The defendants: Roularta Media Group S.A., represented by Me Tom DE CORDIER and Me Valeska DE PAUW, hereinafter referred to as "the first defendant";

Google LLC, represented by Me Jan CLINCK, Me Florence NIEUWBOURG, Me Pierre ANTOINE, and Me Gerrit VANDENDRIESSCHE, hereinafter referred to as "the second defendant," collectively referred to as "the defendants" or "the defending parties."

Decision on the merits 112/2024 — 3/34

I. Facts and procedure

1. The subject of the complaint concerns the alleged tracking of the complainant by the second defendant while visiting a website (flair.be) of the first defendant. On this occasion, an "HTML code" (for the Google Analytics tool) that could be linked to the complainant's account with the second defendant was allegedly embedded via the website of the first defendant. In this context, according to the complaint, personal data associated with the account would have been transmitted to the United States of America.

2. On August 18, 2020, the complainant filed a complaint with the Data Protection Authority (hereinafter "the DPA") against the defendants, through their representative. The complaint was filed in French.

3. On August 26, 2020, the complaint was declared admissible by the Frontline Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

4. On September 25, 2020, the Contentious Chamber decided to request an investigation from the Inspection Service, pursuant to Articles 63, 2° and 94, 1° of the LCA.

5. Subsequently, on September 25, 2020, in accordance with Article 96, § 1 of the LCA, the Contentious Chamber's request for an investigation was transmitted to the Inspection Service, along with the complaint and the inventory of documents. Since the first defendant is located in the unilingual Dutch-speaking jurisdiction and the second defendant is established in the United States of America, the procedure is conducted in Dutch, in accordance with Article 57 of the LCA. The investigation by the Inspection Service thus takes place in Dutch, and the report of the Inspection Service is submitted in Dutch.

6. On October 13, 2022, the investigation by the Inspection Service is concluded, the report is attached to the file, and it is submitted by the Inspector General to the president of the Contentious Chamber (Article 91, § 1 and § 2 of the LCA). This inspection report highlights several issues related to the filing of the complaint.

7. In its report, the Inspection Service first states that Noyb does not demonstrate in the complaint "what is the 'sufficient and concrete interest' of the data subject (a natural person residing in Vienna, Austria) to file a complaint against the specific website [...]. Furthermore, the Inspection Service notes that the website [...] is a Dutch/French website while the data subject does not master the language."

2 Complaint in DOS-2020-03924, p. 2: "The transfer of the complainant's data to the United States is illegal."

3 Inspection report of the Inspection Service in DOS-2020-03924, p. 18-24.

Decision on the Merits 112/2024 — 4/34

Dutch⁴. Furthermore, the Inspection Service specifies: "Given the aforementioned procedural objections, the Inspection Service may question the request of Noyb - European Center for Digital Rights as a valid 'complaint' under national law." [Translator's Note: all passages from the file cited in this document have been freely translated by the translation service of the Data Protection Authority, in the absence of an official translation]⁵

8.

Secondly, the investigation report states that in the context of the requests processed by Noyb "which were submitted in August 2020 to the DPA, a semi-automatic 'mass' method was applied. (...) The various requests submitted in August 2020 for an investigation had a similar format and bore the same signature. The subsequent submission of additional documents took place in a related email [...]. For the different requests, the same concerned individual is always found who mandated Noyb – European Center for Digital Rights. 6"

9.

Thirdly, the Inspection Service emphasizes that the method "must meet the usual basic conditions of any mandate. (...) This means clearly stating against whom a complaint is being filed⁷." The Inspection Service refers below to the "mandate" in question, which is intended "to be used against the Irish controller and not against the Belgian controller" and which only refers to the case numbers (at that time internal) (of Noyb) regarding the identity of the first defendant. The Inspection Service concludes: "It also follows from the content of the mandate that Noyb – European Center for Digital Rights was not duly mandated," since several elements of the mandate were not formulated or were formulated imprecisely or ambiguously.

10.

Fourthly, the Inspection Service highlights that the complainant was "employed" as an intern at Noyb at the time this organization was mandated as a representative. In this context, the Inspection Service draws attention to several personal communications that the complainant posted on the public forum (via social media), in which she referred to her activities related to the Noyb project. Thus, at one point, she indicates that she is happy to have "collaborated" on the project⁸. The Inspection Service "could not establish justification for a personal interest of the concerned individual⁹". The Inspection Service further states: "In the absence of transparency regarding Noyb's method, it at least gives the impression that Noyb is using its collaborators to file requests/complaints in the interest of Noyb rather than in the personal interest of a complainant." and: "(...) confirms the indication that this constitutes an

abuse of procedure under Article 80 of the GDPR. The Inspection Service notes that for the aforementioned requests from 2021, it is systematically interns who are presented as "complainants" in the activities of Noyb – European Center for Digital Rights. The above may potentially indicate a conflict of interest. 10"

11.

For the sake of readability of the decision, the findings of the Inspection Service regarding the content are included under section III of this decision.

12.

On March 13, 2024, the concerned parties are informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

13.

In the letter sent under Article 98 of the LCA, the parties are asked at this stage of the procedure to only explain their viewpoint regarding the legality of the filing of the complaint and how the complainant mandated the representative in a specific context (examined and explained by the Inspection Service), specifically in light of Articles 80.1 and 77.1 of the GDPR. Furthermore, the Contentious Chamber requested the parties to adopt a viewpoint on whether the potential illegality of the execution of the mandate 'affected' the case as a whole.

14.

On May 10, 2024, the Contentious Chamber receives the response conclusions from the two defendants regarding these procedural aspects.

15.

On May 29, 2024, the Contentious Chamber receives the reply conclusions from the complainant regarding these procedural aspects.

16.

On June 21, 2024, the Contentious Chamber receives the reply conclusions from both defendants regarding these procedural aspects.

17.

On June 12, 2024, the parties are informed that the hearing will take place on July 1, 2024.

18.

On July 1, 2024, the parties are heard by the Contentious Chamber. Following a request in this regard from the complainant and the subsequent explicit agreement of both defendant parties, the hearing takes place in a hybrid format. One person from Noyb is physically present and one person from the same organization participates in the hearing via video connection from Austria.

19.

On July 8, 2024, the minutes of the hearing are submitted to the parties.

10 Ibid., investigation report, p. 24-5; the bold and underlined text is the work of the Contentious Chamber in the first sentence.

Decision on the merits 112/2024 — 6/34

20. The Disciplinary Chamber received remarks regarding the minutes from the complainant on July 12, 2024, from the second defendant on July 16, 2024, and from the first defendant on July 17, 2024, which it decides to include in its deliberation.

II. Motivation

II.1. Preliminary Points

21.

The first preliminary question concerns a document submitted by the representative of the complainant after the conclusion exchanges had ended. Three days before the hearing, a document was submitted by the representative of the complainant. Both defendants oppose the admissibility of this document, as it was introduced after the conclusion exchanges. The complainant does not specify during the hearing whether there are valid reasons justifying the late submission of the document. In light of the opposition from the defendants, the document dated June 28, 2024, is fully rejected from the proceedings and is not taken into consideration in the deliberation for this case.

22.

The second preliminary question concerns new documents submitted during the hearing by the representative of the complainant. Both defendants oppose the submission of these documents and their addition to the case file. Given the extremely late nature of the submission of the documents, the opposition from the defendants to the submission, and the absence of any valid reason justifying the late submission, the documents are fully rejected from the proceedings and are not taken into consideration in the deliberation of the Disciplinary Chamber.

23.

Regarding these first two preliminary points, the Disciplinary Chamber notes that as an organ of a supervisory authority, it must take into account all elements brought to its attention in order to guarantee a high level of data protection. This does not prevent the procedure from fulfilling the requirements of contradiction and equality of the parties. The procedure provided in the subsection "deliberation and decision on the merits" in Articles 98 et seq. of the LCA aims precisely to establish a contradictory procedure. In administrative law, particular attention must be paid in this context to the obligation of hearing and the rights of the defense.

24.

A third preliminary point concerns the valid legal appearance of the person who appears (physically) at the hearing for the representative of the complainant. During the hearing, both defendants indicate that they question the mandate of the person to act for Noyb in accordance with the statutes of this association.

11 Opdebeek I. and De Somer S., General Administrative Law: Foundations and Principles, 2nd Ed., Antwerp, 2019 Intersentia, specifically Part V, Chapter III, Section 7 regarding the obligation of hearing.

Decision on the merits 112/2024 — 7/34

25.

It should be emphasized in this context that Noyb has made itself known as a representative before the Contentious Chamber through a message via a specific email address. For the presence at the hearing of the person in question, prior to the hearing, the representative specified via the email address that the Noyb collaborator would be present as a representative. The Contentious Chamber is not obliged to examine ex officio or at the request of the parties how the designation of this collaborator actually took place. The notification by the Noyb organization by email of the identity of the concerned collaborator is sufficient. Thus, this collaborator appeared validly at the hearing for the representative of the complainant.

26.

Fourth and final preliminary point: during the hearing, in its plea, the complainant questions, for the first time and without prior notification, but not in limine litis, the "independence" of the president of the Contentious Chamber in handling this case. Furthermore, the complainant requests the president of the Contentious Chamber to recuse himself. The complainant refers in this regard to "sources" who allegedly heard in private conversations that there was a strategy to dismiss the complaints "from Noyb," as well as to a public event attended by the president of the Contentious Chamber. No other concrete element supporting the absence of "independence" of the sitting member is presented.

27.

Based on the terms used by the complainant, the Contentious Chamber understands that it is rather (or at least also) about the impartiality than the independence of the Contentious Chamber. In any case, the requesting parties must treat such 'recusal requests' with caution and precision. Expressing dissatisfaction regarding (the outcome or the course of) a procedure is something else than making recusal requests concerning members of public institutions, whose legitimacy precisely rests on their independence and impartiality.

28.

Specifically regarding the verbal request of the complainant for the recusal of the president, the president decides not to grant this request for the following reasons.

29.

First and foremost, the complainant was well aware that the president had participated in the handling of this case, at least no later than March 13, 2024, when the parties were invited, in a letter signed by this president, to submit their conclusions.

12 L. Van Den Eynde, "Partijdigheid en belangenconflicten bij het actief bestuur: de sluipweg van het gelijkheidsbeginsel", TBP, 2024, Ed. 4, 215-230, specifically section 2.1 "types of (im)partiality and evidence"; Regarding the confusion of concepts within the judiciary, see: Ooms A., "Judicial impartiality is not always what it seems. A historical and prospective analysis of the boundary between objective and subjective impartiality." (free translation by the Translation Service of the Data Protection Authority, in the absence of an official translation), Public Law Chronicles, 14(2010)4, pp. 499-524; Opdebeek I. and De Somer S., General Administrative Law: foundations and principles, Ed. 2, Antwerp, 2019 Intersentia, specifically part V, Chapter III, Section 8 regarding the principle of impartiality of the administration.

13 See Article 835 of the Judicial Code for recusal requests concerning members of the judiciary, which states that such recusal requests must be filed with the registry with the grounds for recusal in an official document, and this only by lawyers with more than ten years of experience at the bar.

14 In this regard, the legislator anchors several measures in Article 44 of the LCA.

Decision on the merits 112/2024 — 8/34

in this case. The complainant had the opportunity to take the necessary steps. The late nature of the withdrawal request is sufficient in itself to deny this request.

30. Furthermore, the following facts can be referenced. The remarks concerning the complainant's standing (to take legal action) and the mandate were raised ex officio by the Inspection Service of the DPA. The Inspection Service operates as a distinct and autonomous body within the DPA and thus highlighted potential issues regarding the mandate and standing (to take legal action), not the Litigation Chamber, nor its president. Therefore, it is not correct to suggest any bias on the part of an individual or a strategy of the Litigation Chamber or its president.

31.

It cannot then be requested that the Litigation Chamber refrain from responding to the findings of this Inspection Service or to the arguments of the parties. Moreover, it is precisely the mission of the Litigation Chamber to address the means and arguments presented, which must be evaluated in each case.

32.

Following the findings made by the Inspection Service in this matter, the parties were offered, by the Litigation Chamber, the opportunity to initially present their arguments regarding these procedural elements for the efficient conduct of the proceedings.

33. It goes without saying that the Litigation Chamber rules independently and impartially, without fear or favoritism towards either party.

34. During this procedure and related procedures, the Litigation Chamber has collaborated with other regulators within the European Economic Area, in accordance with Chapter VII of the GDPR. This is publicly known information. The fact that, within the framework of confidential cooperation and the fair sharing of information within and between supervisory authorities, information

15 See also Litigation Chamber, decision 22/2024 of January 24, 2024, available via the following link: <https://www.autoriteprotectiondonnees.be/publications/decision-quant-au-fond-n-22-2024.pdf>, §§ 11 and 35.

16 See the Judgment of the Brussels Court of Appeal (Market Court Section) of September 16, 2020, 2020/AR/1160, § 5.7:

"It is not appropriate in a rule of law for the Litigation Chamber of the DPA to be able to 'choose' which argument it responds to or not." ("Dans un état de droit, la Chambre Contentieuse de l'APD ne peut pas 'choisir' l'argument lui permettant de fournir ou non une réponse.", free translation by the translation service of the Data Protection Authority, in the absence of an official translation)

17 European Data Protection Board, EDPB promotes consistent approach for 101 NOYB data transfers complaints ("l'EDPB préconise une approche cohérente pour 101 plaintes de NOYB relatives à des transferts de données", free translation by the translation service of the Data Protection

Authority, in the absence of an official translation), April 19, 2023.

It also appears from document 4 of the summary conclusions of the first defendant that this "adverse" sharing of information by Noyb has been publicly characterized as positive - particularly in light of the present case.

18 See Article 54.2 of the GDPR and Article 48, § 1 of the LCA.

19 See in particular Article 70.1.u) of the GDPR.

Decision on the merits 112/2024 — 9/34

susceptible of raising crucial legal questions on a specific element may be communicated is inherent to the cooperation procedure of Chapter VII of the GDPR.

35. In a credible litigation, one can, through reflection, discover the truth based on solid facts and arguments. In this context, (legal) questions must obviously be able to be raised without implying bias.

36. The mere fact that a previous case before the Litigation Chamber with similar circumstances results in a potentially prejudicial outcome for the same party or its representative does not, in itself, justify the recusal of a member sitting in another case (i.e., the present case).

37. When a party disagrees with a decision of an authority, it is free to appeal against that decision, pursuant to Article 78 of the GDPR. In the Belgian legal order, in accordance with Article 108, § 3 of the LCA, this is also possible for any interested third party before the Market Court. If Noyb believes it has an interest in bringing an appeal against such a decision, it has, if applicable, such access to justice. The fact that in a previous case, no appeal could be lodged because the concerned complainant did not wish to do so - as was stated during the hearing - does not constitute an argument that can be reproached to the Litigation Chamber (or to the APD) and does not matter.

II.2. The complaint lodged under Article 80.1 of the GDPR

38. Article 80 of the GDPR states the following:

"Representation of data subjects

1. The data subject has the right to mandate an organization, association, or non-profit organization that has been validly established in accordance with the law of a Member State, whose statutory objectives are of public interest and is active in the field of protecting the rights and freedoms of data subjects in the context of the protection of personal data concerning them, to lodge a complaint on their behalf, exercise on their behalf the rights referred to in Articles 77, 78, and 79, and exercise on their behalf the right to obtain compensation referred to in Article 82 when the law of a Member State provides for it.

20 The principle of impartiality cannot be applied *contra legem* in this context regarding the circumstances of an international sharing of information ("In particular, the criticism of bias cannot be based on a situation that arises solely from the normal application of the law."), see the Judgment of the Council of State of June 23, 2020, Lossau, No. 247.868; discussion in L. Van Den Eynde, "Bias and Conflicts of Interest in Active Governance: The Sneaky Path of the Principle of Equality," TBP, 2024, Ed. 4, (215)219, § 11.

21 In the conclusions and pleadings, several parties refer in this sense in the procedure to Decision 22/2024 of January 24, 2024, of the Litigation Chamber, against which no appeal has been lodged with the Market Court.

22 In the complainant's remarks regarding the minutes of the hearing, it is specified: "since not appealing against this decision was not in the interest of noyb itself."

Decision on the merits 112/2024 — 10/34

2. Member States may provide that any organization, association, or non-profit organization referred to in paragraph 1 of this article, regardless of any mandate given by a data subject, has, in the Member State in question, the right to lodge a complaint with the supervisory authority that is competent under Article 77, and to exercise the rights referred to in Articles 78 and 79 if it considers that the rights of a data subject provided for in this regulation have been violated due to processing."

In light of the above, Recital 142 of the preamble is also relevant:

"When a data subject believes that the rights conferred on them by this regulation have been violated, they should have the right to mandate an organization, association, or non-profit organization, established in accordance with the law of a Member State, whose statutory objectives are of public

interest and which is active in the field of personal data protection, to lodge a complaint on their behalf with a supervisory authority, exercise the right to an effective judicial remedy on behalf of the data subject, or, if provided for by the law of a Member State, exercise the right to obtain compensation on behalf of data subjects. A Member State may provide that this organization, association, or non-profit organization has the right to lodge a complaint in that Member State, regardless of any mandate given by a data subject, and has the right to an effective judicial remedy if it has reasons to believe that the rights of a data subject have been violated because the processing of personal data took place in violation of this regulation. This organization, association, or non-profit organization cannot be authorized to claim compensation on behalf of a data subject independently of the mandate given by the data subject."

39. The circumstances under which Noyb lodged the complaint on behalf of the complainant can be visualized as follows:

Decision on the Merits 112/2024 — 11/34

This diagram serves solely as an illustrative aid for the reader and does not reflect the reasons on which this decision is based.

40. This decision outlines the following factual circumstances. Firstly, it is undisputed that Noyb pursued a project that formed the basis of the complaint in this case. Noyb communicated about the project, which encompasses several similar and similarly drafted complaints, and the status of the project is publicly updated on Noyb's website. In the context of the project, the subject of the 'grievances' was defined, as well as the preliminary method for filing the complaint and the identity of the targeted data controllers. One purpose of filing the complaints by Noyb was to send a "warning" to the relevant data controllers.

41. Secondly, the complainant was entrusted with the task of examining a specific practice and targeting a specific data controller in this context. The Contentious Chamber notes in this regard that there was no explicit pressure from the complainant; the Contentious Chamber emphasizes that the complainant indicates that she voluntarily filed the complaint and still supports the filing of the complaint. All of this does not change the fact that the initiative came from Noyb, not from the complainant. The representative of the complainant also indicated during the hearing that in this case, they are working with a "model case" for which they ask interns and collaborators if they wish to file a complaint in such model cases and if they wish to become a data subject in this matter.

42. Thirdly, at the time of assigning the project and engaging the data subject to commit a violation of her rights as a complainant and then file a complaint in this regard, there was a working relationship (in this case, an internship) between the complainant and Noyb. Noyb emphasized during the hearing that this internship was entirely non-binding, and the intern could come and go as she pleased. However, a workspace and materials were provided, and there was a limited allowance of 30 euros.

43. Fourthly, the complainant believes that a violation of the GDPR has occurred and that her rights have been infringed. In this context, it is not clear to what extent there may have been harm to the complainant. The Inspection Service was able to ascertain that the violation(s) would indeed have occurred and that the complainant may therefore have genuinely been harmed by a violation.

44. Fifthly, the complainant mandated Noyb after the project guidelines were outlined and the data controllers were identified (by Noyb) and designated (to the complainant).

45. Sixthly, the complaint was filed on behalf of the complainant by Noyb as a representative. The complaint was formulated and submitted to the Data Protection Authority in consultation with the complainant.

46. All of this is clearly evident from the report of the Inspection Service and the discussions. The complete course of events is therefore indisputably established.

II.3. The Dismissal: Reasons and Consequences

47. In this case, the Contentious Chamber essentially identifies two major issues concerning the mandate and subsequent representation:

1) the prior coordination by the representative thoroughly determining the theme, content (including the identity of the data controller), and the "type of violations" of complaints without full autonomy for the complainant, which obstructs a free mandate, especially in the case of an internship relationship

between the complainant and her representative;

25 Mentioned during the hearing in English as a "model case."

Decision on the merits 112/2024 — 13/34

2) the maneuver employed by the representative to invoke the purpose and method provided for in Article 80.2 of the GDPR, thereby emptying the distinction with Article 80.1 of the GDPR that the European legislator has explicitly defined.

48. These major issues are divided into three grounds for dismissal. Each of these grounds taken separately is sufficient to identify problems with the filing of the complaint in accordance with Article 80.1 of the GDPR in conjunction with Article 77 of the GDPR and to proceed with the dismissal of the complaint.

II.3.1. Ground for dismissal I: the filing of the complaint based on a "textbook case" pre-constructed by Noyb creates an artificial interest (to take legal action) and constitutes an abuse of rights

49. First of all, the violations of the processing of the complainant's personal data are constructed, at least partially, artificially by Noyb. Noyb defines how the complainant must provoke the (alleged) violations through the processing of their personal data in order to file the complaint (regardless of any potential 'general' violations²⁶ that do not concretely require the processing of personal data).

50. Without Noyb's project, the alleged violations that harm the complainant would not have occurred. In this regard, it was explicitly acknowledged during the hearing that Noyb "asks" individuals like the complainant (in any case, interns and possibly other staff members²⁷ of Noyb) if they wish to "become" a "data subject."

51. The artificial nature of the situation is further illustrated by the brief visits²⁸; these visits were clearly intended solely to provoke or ascertain the violations, which the defendants rightly emphasize in their conclusions. The representative has not even claimed at any stage of the proceedings that the complainant was a regular or even occasional visitor of the relevant web pages²⁹. All of this indicates that the complainant is artificially creating their own interest (to take legal action) for the benefit of the representative.

52. The Contentious Chamber emphasizes, in general terms, that the right to lodge a complaint under the GDPR provides broad and easy access for concerned complainants to approach the supervisory authorities, if they wish, via a mandate to a representative. The importance of the right to lodge a complaint for a concerned citizen was recently reaffirmed in the

26 One might think, for example, of a violation of Article 25 of the GDPR.

27 During the hearing in English, the representative of Noyb used the term "staff."

28 See in this regard Decision 22/2024 of the Contentious Chamber dated January 24, 2024, §§ 53 et seq.

29 The pages of the website are written in French and Dutch.

Decision on the merits 112/2024 — 14/34

jurisprudence of the Court of Justice.³⁰ It is precisely this broad access to justice that necessitates the protection of the right to file a complaint against the abusive use of this right by companies or associations with strategic purposes and related projects of their own.

a) Abuse of rights in European law

53. Regarding the non-compliance with Article 80.1 in conjunction with Article 77 of the GDPR, it is important to draw attention to the consistent jurisprudence of the Court of Justice concerning the abusive use of a subjective right under Union law, as a general principle of European Union law.³¹ In this regard, abuse of rights is based on circumvention, which distinguishes it from the concept of fraud - which is based on deception.³²

54. The Court of Justice of the European Union frames the prohibition of abuse of rights as follows: "In this regard, it is established case law that there exists, in Union law, a general principle of law according to which litigants may not fraudulently or abusively invoke the norms of Union law. (...) It follows from this principle that a Member State must refuse the benefit of the provisions of Union law when these are invoked not in order to achieve the objectives of those provisions, but in order to gain an advantage from Union law when the conditions for benefiting from that advantage are only formally

met. (...) It follows that the general principle prohibiting abusive practices must be opposed to a person when that person invokes certain rules of Union law providing for an advantage in a manner that is not consistent with the purposes that those rules aim to achieve. (...)

30 Judgment of the Court of Justice of the European Union, December 7, 2023, *UF v. Schufa*, joined cases C-26/22 and C-64/22, ECLI:EU:C:2023:958, specifically recital 58; see also the Judgment of the Court of Justice of the European Union of July 16, 2020, *DPC v. Facebook Ireland Ltd. and Maximillian Schrems* ("Schrems II"), C-311/18.

31 Velaers J. "Abuse of Rights: Concept, Basis, and Legitimacy" in Rozie J., Rutten S., Van Oevelen A. (eds.), *Abuse of Rights*, Antwerp, Intersentia, (1)4, which refers in footnote 19 notably to the judgment of the Court of Justice of May 5, 2007, *Hans Markus Kofoed v. Skatteministeriet*, C-321/05, ECLI:EU:C:2007:408.;

Danon R. et al, "The Prohibition of Abuse of Rights after the ECJ Danish Cases" in *Intertax*, Vol. 49, Is. 6/7, 2021, 482-516, <https://doi.org/10.54648/taxi2021050>;

López Rodríguez J., "Some Thoughts to Understand the Court of Justice Recent Case-Law in the Danmark Cases on Tax Abuse", *Ec AC Review*, Vol. 29, Is. 2, 71-83, <https://doi.org/10.54648/ecta2020009>.

32 See: "If both frauds and abuses of law aim at wrongfully obtaining a benefit from the legal system, frauds involve misrepresentation, whereas abuses of law rely on circumvention." in A. SAYDE, *Abuse of EU Law and the Regulation of the Internal Market*, Oxford, Hart Publishing, 2014, 24; free translation of the quote: "Although both fraud and abuse of rights aim to illicitly obtain an advantage from the legal system, fraud involves a misrepresentation while abuse of rights relies on circumvention."

Decision on the merits 112/2024 — 15/34

(...) this provision cannot be interpreted as excluding the application of the principle of Union law regarding the prohibition of abusive practices, insofar as the application of said principle is not subject to a requirement of transposition (...).

(...)

While the search by a taxpayer for the most advantageous tax regime cannot, in itself, establish a general presumption of fraud or abuse (...) it remains the case that such a taxpayer cannot benefit from a right or advantage arising from Union law when the operation in question is purely artificial from an economic perspective and aims to escape the reach of the legislation of the concerned Member State (...)

(underlining by the Litigation Chamber)³³

55. The case law of the Court establishes as a principle two cumulative elements to speak of a violation of the prohibition of abuse of rights, on the one hand a subjective element and on the other hand an objective element³⁴.

56. Regarding the objective element³⁵: the objective pursued by the right to lodge a complaint through a mandate (art. 77 in conjunction with art. 80.1 of the GDPR) is not respected in this case: Article 80.1 of the GDPR establishes that it is the data subject who holds the right to mandate an organization to represent them. The terms "data subject" reveal, first of all, that personal data and related processing must already exist in the context of the grievances mentioned prior to (the coordination preceding) the mandate.

57.

The term "mandate" again emphasizes the fact that the mandate goes in one direction only: from the complainant to the representative, not in the reverse direction³⁶.

33 Judgment of the Court of Justice of the European Union, February 26, 2019, joined cases C-115/16 and C-299/16, respectively §§ 96, 98, 102, 105, and 109.

See also the following judgments of the Court of Justice of the European Union: 1) December 14, 2000, *Emsland-Stärke*, C-110/99; 2) February 21, 2006, *Halifax*, C-255/02; 3) November 22, 2017, *Cussens*, C-251/16.

34 Judgment of the Court of Justice of the European Union, February 26, 2019, joined cases C-115/16

and C-299/16, § 139; Meirlaen M., *Ongeschreven rechtsgrenzen – Verbod van rechtsregelontduiking, fraus omnia corrumpit en verbod van (rechts)misbruik*, Antwerp, Intersentia, 2022, 353: "The subjective element implies that, despite formal compliance with the conditions imposed by the Union regulation, the objective pursued by this regulation was not achieved. The objective element requires that a set of objective circumstances shows that the essential aim of the conduct is to obtain an unjustified advantage."

35 Judgment of the Court of Justice of the European Union, February 26, 2019, joined cases C-115/16, C-118/16, C-119/16, and C-299/16, § 139: "(...) a set of objective circumstances from which it follows that, despite formal compliance with the conditions laid down by Union legislation, the objective pursued by this legislation has not been achieved. (...)"

36 The complaint is also filed on behalf of the data subject, so it is the data subject who constitutes the central starting point. See Frenzel E.M., "Art. 80 DS-GVO" in Paal B.P. and Pauly D.A., *Datenschutzgrundverordnung Bundesdatenschutzgesetz*, C.H. Beck, Ed. 3, (1030)1033: "However, a comparison with the English version reveals that it follows from the term 'mandate' and from the purpose and aim of paragraph 1 that the organization is entitled to exercise the rights on behalf of the data subject."

Free translation: "A comparison with the English version, however, shows that it follows from the term 'mandate' and from the role and purpose of paragraph 1 that the organization is authorized to exercise the rights on behalf of the data subject."

Decision on the Merits 112/2024 — 16/34

58. Furthermore, Recital 143 of the GDPR specifies that the data subject must first have "assessed" themselves that there is an issue under the GDPR, and not as a result of a specific instruction from the representative, before the mandate is given. The violation is instigated by Noyb in order to qualify the complainant as a data subject.

59. Regarding the subjective element³⁷: the representative seeks to create a standing to sue before the DPA; this standing cannot exist without the complainant, as an individual, based on Belgian legislation. This demonstrates the artificial nature of fulfilling the conditions under Article 80.1 of the GDPR³⁸.

60. The representative is thus attempting to circumvent national law, given that Article 80.2 of the GDPR has not been activated in Belgian legislation³⁹. This is also indirectly evident from the complainant's arguments in the reply submissions and in the pleadings during the hearing: it is specified that the present complaint should actually also be allowed under Article 80.2 of the GDPR and that the non-activation of this provision could be discriminatory⁴⁰.

61. The Contentious Chamber emphasizes in this regard that the GDPR leaves national legislators with discretionary power to activate or not activate Article 80.2 of the GDPR. The choice of the Belgian legislator is evident. According to the terms of Article 80.1 of the GDPR and given the existence of Article 80.2 of the GDPR, the GDPR does not aim for the representative to engage in such an exercise of the right to lodge a complaint under Article 80.1.

62. According to the Contentious Chamber, the artificial nature of the construction is established, given that the identity of the data controllers and the grievances raised have not been defined by the concerned complainant (but rather beforehand by the representative), or the brief visits of the concerned complainant, noted by the Inspection Service and mentioned by both defendants in their defenses. The representative publicly states that the present complaint is part of a general project regarding data transfers⁴¹. During the hearing, it is specified that trainees can without obligation "become" data subjects.

37 Judgment of the Court of Justice of the European Union, February 26, 2019, joined cases C-115/16, C-118/16, C-119/16 and C-299/16, § 124: "(...) a subjective element consisting of the intention to obtain a benefit resulting from Union regulation by artificially creating the conditions required for its attainment (...)".

38 Regarding the artificial nature of fulfilling the conditions, see A. SAYDE, *Abuse of EU Law and the Regulation of the Internal Market*, Oxford, Hart Publishing, 2014, 25.

39 Regarding the distinction, see the Judgment of the Court of Justice of the European Union of April

28, 2022, *Meta Platforms v. Verbraucherzentrale Bundesverband e.V.*, C-319/20.

40 See below, section II.3.3, the discrimination would have been based here on Articles 10-11 of the Constitution in the relationship between Article 220 of the law on the protection of natural persons with regard to the processing of personal data (hereinafter the LTD) and Article 17 of the Judicial Code.

41 Summary conclusions of the second defendant, document 5 ("101 Complaints on EU-US transfers filed", freely translated as: "101 complaints lodged regarding the transfers between the European Union and the United States").

Decision on the merits 112/2024 — 17/34

63. The encouragement to create access to justice involves an unjustified advantage that constitutes the subjective element of abuse of rights under Union law on the part of Noyb. In this case, the advantage aims at pursuing the general (strategic) objectives of the Noyb association.

64. The two conditions for speaking of an abuse of rights under Union law are therefore met, and in accordance with the case law of the Court, it follows that the Contentious Chamber must refuse the use of the right (i.e., the filing of the complaint) by Noyb.

b) Abuse of rights applied in the Belgian legal order

65. Secondly, the filing of the complaint must take place according to the procedural rules defined at the national level, of course within the limits set by Union law. As the Court of Justice has already specified, "(...) it is for the internal legal order of each Member State to regulate the procedural aspects of legal actions intended to ensure the protection of the rights of litigants, in accordance with the principle of procedural autonomy (...)."

66. The fact that the rule of law from which the subjective right to file a complaint derives (in this case, Article 77 in conjunction with Article 80.1 of the GDPR) does not explicitly exclude the possibility of filing a complaint based on a created grievance does not obviously mean that the rule of law is being used correctly. As framed in recent Belgian doctrine: "The comprehensive explanations of the rule of law indeed seem to allow that the subjective right can be exercised in any manner or under any circumstances. The prohibition of abuse (of rights) (...) specifies that this is not the case. [Translator's note: freely translated by the Translation Service of the Data Protection Authority, in the absence of an official translation]."

67. The Court of Cassation has already ruled several times on the application of the prohibition of abuse of rights. In this context, the link with the interpretation of this principle of

42 See the section 'Abuse of rights as a choice to benefit from the advantages of the law': A. SAYDE, "I. The Basics: Abuse of Law as Gain-Seeking Choice of Law" in *Abuse of EU Law and the Regulation of the Internal Market*, Oxford, Hart Publishing, 2014, 24.

43 Judgment of the Court of Justice of the European Union, February 26, 2019, joined cases C-115/16, C-118/16, C-119/16 and C-299/16, § 110. "It follows from these elements that it is for the (...) national authorities to refuse the benefit of rights (...) when they are invoked (...) abusively."

44 Judgment of the Court of Justice of the European Union, May 4, 2023, *Österreichische Post*, C-300/21, § 53.

45 Meirlaen M., op. cit., 277; see also further the discussion of the legal origin in Velaers J.

"Rechtsmisbruik: begrip, grondslag en legitimiteit" in Rozie J., Rutten S., Van Oevelen A. (eds.), *Rechtsmisbruik*, Antwerpen, Intersentia, (1)1-4. By way of illustration, see Article 1.10, paragraph 2 of the new Civil Code: "Commits an abuse of rights one who exercises it in a manner that clearly exceeds the limits of normal exercise of this right by a prudent and reasonable person placed in the same circumstances."

46 Recently in the Judgment of the Court of Cassation of November 16, 2023, *Docpharma v. the Belgian State*, C.23.0053.N.

Decision on the merits 112/2024 — 18/34

The law as applied by the Court of Justice in a national context is evident⁴⁷.

The Court of Cassation is also clear that disregarding the purpose of a subjective right can constitute a form of abuse of right. Thus, the Court of Cassation specifies in a judgment of February 15, 2019:

"Abuse of right consists of exercising a right in a manner that clearly exceeds the limits of the exercise

of that right by a prudent and reasonable person. Such abuse may also consist of using legal rules or legal institutions in a manner contrary to the purpose for which they were established" [Translator's Note: free translation made by the Translation Service of the Data Protection Authority, in the absence of an official translation].⁴⁸

68. The Contentious Chamber notes that the concept of abuse of right can also apply to the exercise of procedural rights. The actions of Noyb in the present case seem to exceed the limits of a normal and proportionate exercise of the right to representation, as provided for in Article 80.1 of the GDPR.

69. A legal subject who uses a subjective right must indeed also respect the general standard of prudence when reading and interpreting the objective norm on which they base their subjective right, and take into account the "(...) implicit material limits that it also entails"⁴⁹. A legal subject cannot, in this context, disregard the purpose of the legal provision from which the subjective right derives⁵⁰. In this regard, the existence of Article 80.2 of the GDPR, in particular, is important.

70. The fact that the representative defines how a violation must be experienced in order to be able to mandate the exercise of the right to lodge a complaint under Article 77 in conjunction with Article 80.1 of the GDPR with the Belgian authority implies that the general standard of prudence is disregarded by the representative and thus constitutes an abuse of right.

47 See the conclusions of the Public Prosecutor's Office at the Court of Cassation of January 11, 2024, K. against the Belgian State, F.23.0008.N: the application of the objective element and the subjective element is discussed in detail there.

48 Judgment of the Court of Cassation of February 15, 2019, G.C. v. KBC Bank NV, C.18.0428.N, § 1; see also the Judgment of the Court of Cassation of October 1, 2020, C.18.0584.F which essentially states that abuse of right consists of exercising a right in a manner that clearly exceeds the limits of the normal exercise of that right by a prudent and reasonable person and that this is particularly the case when the harm caused is not related to the benefit that the holder of that right aims for or has obtained.

49 Meirlaen M., op. cit., 282; Rozie J., Rutten S., Van Oevelen A. (eds.), *Rechtsmisbruik*, Antwerp, Intersentia, 12.

50 Meirlaen M., *Ongeschreven rechtsgrenzen – Verbod van rechtsregelontduiking, fraus omnia corrumpit en verbod van (rechts)misbruik*, Antwerp, Intersentia, 2022, nbp 898: "Cass. February 15, 2019, AR C.18.0428.N; Cass. September 28, 2018, AR C.18.0058.N; Cass. April 2, 2015, AR C.14.0281.F; Cass. January 13, 2012, AR C.11.0135.F; Cass. September 7, 2006, AR C.04.0032.F; Cass. September 24, 2001, AR S.00.0158.F; Cass. April 28, 1972, Arr.Cass. 1972, 815; Pas. 1972, 797; RW 1972-73, note R. Butlzer."; Ibidem, p. 323: "When it can be demonstrated that the legal rule, the subjective right that derives from it, can only be used for a specific purpose, the finding that the (proposed) use does not aim at this purpose is sufficient to establish the abuse" (free translation made by the Translation Service of the Data Protection Authority, in the absence of an official translation)."

Decision on the merits 112/2024 — 19/34

The purpose of Article 80.1 of the GDPR is indeed not to 'create' complainants in this manner. The Contentious Chamber does not express any opinion in this context on the fact that motives based on good intentions may be hidden behind the method; it is only specified that the right to lodge a complaint is being abused and, in particular, is not in compliance with national legislation, which has excluded a remedy from an organization in its own name, irrespective of an affected individual.

71.

The Court of Cassation asserts that when it comes to an abuse of rights, the exercise of the right must be limited to a normal use of it. In the present case, the complaint was filed by Noyb as a representative. For this reason, this simple fact already necessitates the dismissal of the entire case.

II.3.2. Reason for dismissal II: fictitious mandate due to the fact that the grievances and the data controller have been predefined within the framework of an internship

72.

The grievances are predefined on behalf of the complainant, just as the method for working with mandates under Article 80.1 of the GDPR has been predefined. Furthermore, the identity of the data controller in question is established by the representative before the complainant accepts the "case study" and grants a mandate in this regard.

73.

Although it is certainly not excluded that the complainant, as an affected individual, had a say in determining the guidelines of the project, these guidelines were not defined solely by the complainant as an affected individual, as evidenced by the fact that similar complaints (read: almost identical) have been filed by different complainants within the framework of the project. This is evident from the findings of the Inspection Service regarding the 'mass' method.

74.

In this context, the Contentious Chamber emphasizes that it is difficult for a collaborator to question the entire structuring of a project and not to give their consent to grant the mandate according to the outlined guidelines - just as it is difficult for an affected individual to give their consent to the processing of personal data under Article 6.1.a) of the GDPR in different circumstances within a working relationship.

51 Regarding the abuse of rights through the use of a right whose purpose is unknown, see: Cornet L., "Abuse of Rights and the New Law of Contracts" in Kohl B. (eds.), Abuse of Rights, Liège, Anthemis, 2024, (1)25-6.

52 Judgment of the Court of Cassation of May 23, 2019, V.M. v. P.B., C.16.0474.F, paraphrase of the following text: "The sanction for an abuse of rights may consist of reducing said right to its normal use."

53 In its summary conclusions, the first defendant cites on page 6 a press release from the complainant's representative, which explains how the identification took place: "Websites were chosen based on the TLD (top-level domain) of the Member State. (...) We searched large websites in each Member State. (...) " (Translator's note: free translation by the Translation Service of the Data Protection Authority of the free translation from English made by the first defendant of document 3 of its summary conclusions; the Contentious Chamber has formatted and underlined).

54 See in this regard Decision 22/2024 of the Contentious Chamber of January 24, 2024, §§ 46-52. Decision on the merits 112/2024 — 20/34

75.

In its Guidelines 5/2020 on consent, the European Data Protection Board ("EDPB") notably stated that given the imbalance between an employer and its employees and the resulting hierarchical dependence, it is unlikely that an employee will be able to respond freely to a request from their employer without feeling obliged to consent⁵⁵. This applies *mutatis mutandis* to interns, even if the engagement is optional: it can indeed be emphasized that a successful or unsuccessful internship can have consequences for a person's career.

76.

It is also important to draw attention again to the legal provision regarding the mandate (Article 80.1 of the GDPR), which states that it is the data subject who holds the right to mandate an organization to represent them. The terms "data subject" reveal, first of all, that personal data and related processing must already exist in the context of the grievances mentioned prior to (the coordination preceding) the mandate. The term "mandate" again emphasizes the fact that the mandate goes in one direction only: from the complainant to the representative, not the other way around⁵⁶. Furthermore, Recital 143 of the GDPR specifies that the data subject must first have "assessed" themselves that there is a problem under the GDPR, and not as a result of a specific instruction from the representative, before the mandate is given.

77.

Moreover, it should be emphasized that this fictitious mandate also creates a potential harm issue for the concerned complainant, which could not occur if the representative did not initiate the project and did not encourage the data subjects to commit violations and then file a complaint regarding that violation. This is particularly relevant concerning the personal data processing of the complainant, which may be contrary to the provisions of the GDPR.

78.

In any case, it is clear that the grievances are predefined by the representative of the complainant and that the lawful and free nature of the mandate by the complainant, who is also an intern with the representative, is thus compromised. This is sufficient to establish that the mandate took place in a

problematic manner and more specifically in a fictitious manner, and in a manner non-compliant with Article 80.1 of the GDPR.

55 EDPB Guidelines 5/2020 on consent under Regulation (EU) 2016/679, point 21.

56 See also Article 1984 of the Civil Code, which specifies that one person gives another the power to do something for the principal and in their name. Article 1989 of the Civil Code may also be mentioned. It states that the mandatary cannot do anything beyond the limits of their mandate; this supports the argument that the complainant must themselves define the limits of the mandate.

Decision on the merits 112/2024 — 21/34

II.3.3. Reason for dismissal III: a maneuver to address global and ancillary issues for strategic purposes of an association

79.

The third and final reason for dismissal concerns the manner in which the representative of Noyb - beyond the artificially created standing to sue and the fictitious mandate - also attempts to address global and ancillary issues through access to justice, notably the allegedly unlawful transfers of data to the United States from the European Economic Area following the Schrems II ruling of the Court of Justice of the European Union⁵⁷. This is closely linked to the strategic purposes of the Noyb association. As the Inspection Service rightly points out in this context, a potential conflict of interests, or at least differing interests, arises here. In the context of a representation mission, the representative must prioritize the interests of the concerned complainant and not pursue their own strategic purposes.

80. Article 80.2 of the GDPR (and not Article 80.1 of the GDPR) is precisely the provision used by associations to autonomously address certain practices⁵⁸.

81.

The European legislator has indeed provided for the possibility of initiating complaints by organizations such as Noyb, but only when national legislators allow it. However, the Belgian legislator has excluded this⁵⁹. For the Contentious Chamber, it is important to frame this choice of the legislator.

82.

Indeed, it is important to clarify that Article 80.2 of the GDPR was drafted distinctly from Article 80.1 of the GDPR and must be activated distinctly within the national legal sphere. The national legislator has the opportunity to define the 'activation' of the article, for example, to prevent an influx of complaints that would be unmanageable, just as the GDPR provides, for individual concerned persons' complaints, the possibility for supervisory authorities to refuse to process them in cases of excessive use⁶⁰. According to the Court of Justice, Article 80.2 of the GDPR has a preventive function, giving the concerned organizations the opportunity

57 Summary conclusions of the second defendant, document 5; "101 Complaints on EU-US transfers filed", freely translated as: "101 complaints introduced on the transfers between the European Union and the United States".

58 Regarding Article 80.2 of the GDPR, an author writes: "The right to lodge a complaint is therefore ancillary to the (alleged) violation of subjective rights, and the association is thus only a 'complainant behind the complainant'." Freely translated from: Frenzel E.M., "Art. 80 DS-GVO" in Paal B.P. and Pauly D.A., *Datenschutzgrundverordnung Bundesdatenschutzgesetz*, C.H. Beck, Ed. 3, (1030)1034: "Das Klagerecht ist damit akzessorisch zur (behaupten) Verletzung subjektiver Rechte, der Verband damit nur 'Klager hinter dem Kläger'"

59 The two defendants refer to the legislative preparatory works of the Belgian Chamber:

1) summary conclusions of the first defendant, p. 18; and

2) summary conclusions of the second defendant, paragraph 69 - referencing in the footnote the: Bill of June 11, 2018 concerning the protection of natural persons with regard to the processing of personal data, Parl. Doc. Chamber, 2017-18, no. 54-3126/001, 226.

60 See Article 57.4 of the GDPR.

Decision on the merits 112/2024 — 22/34

to address issues in a comprehensive manner when they believe that the rights of a concerned individual under the GDPR have been violated as a result of processing.

83. The fact that Noyb intervened in a case before the Court of Justice in which it represented a

(former) concerned employee, and that therefore the intervention of the DPA would be permitted, is anything but a correct deduction. Even if the circumstances were exactly the same as in the present case—which is not the case—the access to justice before courts and tribunals is different from that before a supervisory authority. Furthermore, the defendants rightly point out that the preliminary question at issue before the Court had nothing to do with the power of representation before an authority in the sense of Article 80 of the GDPR.

84. When large-scale complaints reflecting actual violations based on fictitiously drafted complaints under Article 80.1 of the GDPR are filed, the supervisory authority's mission to intervene can, de facto, become impossible, and its public interest oversight missions are compromised. This represents a misunderstanding of the intention of the European legislator, which leaves the national legislator the autonomy to assess the desirability of such access to justice for interest groups.

85. In this context, it should also be emphasized that the accessibility of the right to lodge a complaint encourages several hundred individual concerned persons each year to file a complaint with the DPA as a complainant. Many of these complaints are concretely addressed, thoroughly examined, and lead to corrective measures. In any case, individual complaints have already led to several hundred decisions from the Contentious Chamber.

86. Within the European Economic Area, (well) over 100,000 complaints are filed annually under the GDPR complaint regime, and according to the most recent figures,

61 Judgment of the Court of Justice of the European Union of April 28, 2022, *Meta Platforms v. Verbraucherzentrale Bundesverband e.V.*, C-319/20, § 76; Judgment of the Court of Justice of July 11, 2024, *Meta Platforms Ireland Ltd. v. Bundesverband der Verbraucherzentralen und Verbraucherverbände – Verbraucherzentrale Bundesverband eV*, C-757/22, ECLI:EU:C:2024:598, § 64.

62 Judgment of the Court of Justice of May 4, 2023, *CRIF*, C-487/21.

63 In the reply conclusions, the complainant states it as follows: "If even the CJEU considers such representation to be valid in law, the DPA must also allow it."

64 See also the obligations for the supervisory authority to take action in case of violations found during the administrative procedure, see CJEU, Opinion of Advocate General Pikamäe of April 11, 2024, *TR v. Land Hessen*, C-768/21.

65 The proposal from the European Commission does not make national 'activation' mandatory; this further indicates that it is a deliberate and important consideration of the European legislator to leave this choice to the national legislator. COM(2012), 11 final, Article 73.2; see also Frenzel E.M., "Art. 80 DS-GVO" in Paal B.P. and Pauly D.A., *Datenschutzgrundverordnung Bundesdatenschutzgesetz*, C.H. Beck, Ed. 3, (1030)1032: "According to Article 76(2) of the GDPR-E (Council), the right of associations to file complaints was no longer provided from the outset, but left to the discretion of the member states (...)", free translation: "According to Article 76.2 of the GDPR, the position (of the Council) was to no longer provide the right for an association to file a complaint as a reference situation, but the transposition was left to the member states. (...)"

66 Communication from the European Commission of July 25, 2024, Second Report on the Application of the General Data Protection Regulation, COM(2024) 357 final, section 2.3, see also section 2.5.2 regarding the "processing of a large number of complaints."

Decision on the merits 112/2024 — 23/34

recently publicly available, just under 4000 staff members⁶⁷ would be employed in 2024 across all supervisory authorities. The handling of complaints from individual data subjects deserves the necessary attention and precise treatment with the limited resources available to the authorities.

87.

All of this paints the context in which it is important that the limits set by the legislator are respected. These limits have also been confirmed by the Court of Justice⁶⁸.

88. This does not, of course, mean that civil society should not play a role in litigation concerning the right to data protection, or in filing complaints. Furthermore, organizations as representatives can certainly play a role in Belgium in facilitating the filing of complaints through representation and in informing data subjects and data controllers about their rights and obligations. However, this is not the

same as crafting complaints for non-existent complainants at that time.

89. The method where the complaint, initiated by the representative, attempts to address a predefined general practice, treating it as ancillary in a complaint from an individual data subject demonstrates that a maneuver has taken place in light of Article 80.1 of the GDPR when filing this complaint in order to address practices in a manner exclusively provided for under Article 80.2 of the GDPR⁶⁹. This method can also cause potential conflicts of interest during the representation mandate. The Contentious Chamber finds that the use of Article 80.1 of the GDPR by the representative in this case is not lawful for these reasons.

II.3.4. Dismissal

90. The reasons put forward above illustrate that this case is not merely a semantic question but that the method causes or may also cause real problems in this instance. Each reason taken separately is sufficient to prove the non-compliance with the choices of the European legislator and the Belgian legislator: the method used in this case by the complainant party contravenes the law in several ways. The Contentious Chamber has thoroughly and objectively examined the case and can only conclude that the complaint filed must be dismissed for the aforementioned reasons.

67 Based on the sum of projections provided by the supervisory authorities to the EDPB, Contribution of the EDPB to the report on the application of the GDPR under Article 97, December 12, 2023, p. 28-9.

68 Judgment of the Court of Justice of the European Union of April 28, 2022, *Meta Platforms v. Bundesverband der Verbraucherzentralen und Verbraucherverbände – Verbraucherzentrale Bundesverband e.V.*, C-319/20, § 59.

69 There can be no abuse of European law to circumvent national legislation, see the Judgment of the Court of Justice, *Halifax*, C-255/02.

Decision on the merits 112/2024 — 24/34

II.3.5. Consideration regarding the consequences of the dismissal

91.

The fact that the mandate and the interest (to take legal action) in this case fundamentally constitute problematic elements has been demonstrated based on several aforementioned reasons. This leads to the dismissal under Article 100, § 1, 1° of the LCA. However, this does not exclude that the complainant considers herself aggrieved as a data subject after an alleged violation has occurred, as this alleged violation may indeed take place as a result of actions preceding the fictitious mandate and resulting from it.

92.

Firstly, the representative argues that the complainant could have also filed a complaint without representation, which would have meant that the processing of the case could then have continued without restrictions; furthermore, the representative also argues that 'autonomous' representation without the concerned complainant under Article 80.2 of the GDPR may simply constitute a possibility for the representative in Belgium.

93. In this instance, it is precisely the abusive use of the right to file a complaint (notably the use of a fictitious mandate that creates the violation on the part of the data subject) that leads to the dismissal of the present complaint case.

94. The Contentious Chamber rejects the argument that the violation or harm has already occurred and that therefore, the processing of the case must continue. The Contentious Chamber believes that procedural rules - just like substantive rules - must be respected, regardless of whether a particular outcome seems most favorable or desirable based on the strategic purposes of a party.

95. In other words: the complainant did not file a complaint without representation, therefore the Contentious Chamber does not treat the complaint case as such. The Contentious Chamber cannot requalify a complaint when it has not been filed in that manner.

96. The representative also did not invoke Article 80.2 of the GDPR for the filing of the complaint, therefore the Contentious Chamber does not treat the case as such. Moreover, for this last point, the representative does not refer to existing legal standards but to the potential discriminatory situation (under the Constitution) in which Noyb can nonetheless represent data subjects before the courts in

this 'autonomous' manner under Article 17 of the Judicial Code, but not before the APD. The GDPR, however, allows the Belgian legislator to distinctly activate Article 80.1 of the GDPR, so there is no reason to consider this situation before the

Decision on the merits 112/2024 — 25/34

Contentious Chamber as discriminatory⁷⁰. Different cases do not necessarily have to be treated in the same way.

97. The mere fact that these violations may have occurred, or that harm may have been caused in this context, does not justify accepting the fictitious mandate and the artificially created interest to take legal action. Procedural rules are in the interest of the quality and legitimacy of a procedure.

98. Secondly, the Contentious Chamber emphasizes that this does not mean that a collaborator of an organization such as Noyb could never file a complaint with Noyb as a representative.

II.4. The mandate under Article 80.1 of the GDPR: form and elements

99. First, during the proceedings, several elements revealing possible issues with the formulation of the mandate are raised. The representative of the complainant asserts during the hearing that the provision of Union law must be interpreted autonomously to affirm that a mandate does not contain formal⁷¹ formalities, referring to purely oral possibilities for doing so. The defendants, on the other hand, object, just as the Inspection Service does, that there are certain formal defects or those related to content, which concern the essential elements⁷² of the mandate contract, as well as its relevance as evidence⁷³ of representation. In the mandate contract attached to the complaint, the first defendant is not explicitly named.

70 De Bot D., *The application of the General Data Protection Regulation in the Belgian context: commentary on the GDPR, the Data Protection Act, and the Data Protection Authority Act*, Mechelen, Wolters Kluwer, 2020, 1164-5 (§ 2998-9).

71 Regarding the form, the European legislator does not specify whether the "mandate" referred to in Article 80.1 of the GDPR concerns the instrumentum (the written contract or other) or the negotium (the contract).

Regarding the instrumentum, it is clarified in classical national doctrine that a mandate contract can be solo consensu (Tilleman B., "Title V: Form of the Mandate Agreement" in *Mandate*, Ghent, Story-Scientia, 1997, §§139 et seq.).

In specialized doctrine related to the GDPR, it is questioned whether a mandate under Article 80.1 of the GDPR requires any written document: see Frenzel E.M., "Art. 80 DS-GVO" in Paal B.P. and Pauly D.A., *General Data Protection Regulation Federal Data Protection Act*, C.H. Beck, Ed. 3, (1030)1033-4: "This requires - if only for reasons of security in legal transactions and to exclude the risk of abuse - an explicit, written declaration (...)" (the Contentious Chamber adjusts the formatting); free translation: "This requires - if only for reasons of security in legal transactions and to exclude the risk of abuse - an explicit written declaration (...)."

72 The legal acts that the representative must perform could be considered essential elements, but it can also be argued that the identity of the data controller can be regarded as an essential element in the mandate mission in the context of a GDPR complaint. See also: Van Oevelen A., *Principles of Belgian Private Law. 10: Contracts. 2: Special contracts. E: Work contract – mandate*, Mechelen, Wolters Kluwer, 2017, § 389;

Also see Article 1988 of the Civil Code: "The mandate conceived in general terms only embraces acts of administration."

73 It is incumbent upon the one invoking a mandate contract to prove its existence, see: Tilleman B., op. cit., § 172; Van Oevelen A., op. cit., § 417: "In this context, the mandate contract has the particularity that the mandatary, in exercising his mandate, performs legal acts in relation to a third party with respect to whom he must be able to demonstrate his competence of representation." (free translation made by the translation service of the Data Protection Authority, in the absence of an official translation); *ibid*, § 419.

Decision on the merits 112/2024 — 26/34

100. The complainant refers in the contract attached to the complaint to 25 different case numbers (Noyb) in the sole document for the mandate, which confirms what was previously stated regarding the

artificially created standing to sue within the project with Noyb's case studies. The fact that 25 complaints are filed raises the question of the applicability of the excessive use of the right to complain—for clarity, without the Contentious Chamber drawing any conclusions from it.

101. The complainant attempted to rectify the criticism regarding the initial mandate by attaching another document related to the granting of a mandate to its summary conclusions, in which the individual data controllers (including the first defendant) are identified—along with the identification of data controllers in three other complaint files with the DPA that are not formally linked to the present complaint. This document was only signed by the complainant in this file (unlike the document attached to the complaint).

102. Given that in the present case, the decision to dismiss is already based on several other grounds for dismissal, the Contentious Chamber does not pursue here and now the examination of the legality of the rectification of the allegedly insufficient aspects of the representation mandate in the document attached to the complaint by the document submitted with the complainant's reply conclusions. These are merely considerations within the framework of transparency regarding the means and arguments put forward.

103. Secondly, the two defendants mention a failure on the part of the complainant under Belgian law. In this regard, it concerns Article 220, § 2 of the LTD, regarding which the defendants point out that the representative has not been active "for at least three years" in the field of personal data protection or at least that he has not submitted the correct proof to this effect (presentation of proof required under Article 220, § 3 of the LTD), and that under the same legal provision, it is not an association that has been constituted "in accordance with Belgian law."

104. Regarding this point, the complainant indicates during the hearing that it was established more than three years before the filing of the complaint; its objectives aim to promote and enforce the rights of data subjects and individuals in the digital sphere.

105. Furthermore, the Contentious Chamber emphasizes that the requirement that an association within the meaning of Article 80 of the GDPR must have been constituted in accordance with "Belgian law," according to Article 220 of the LTD, is contrary to European Union law and more specifically to the

74 See Article 57.4 of the GDPR.

75 The manifestation of the representative's will can, in civil law, also result from their actions; see Van Oevelen A., *op. cit.*, § 416 in fine: "The signature of the agent is not necessary (...) but has the advantage of proving the explicit acceptance by the agent of their mandate and thus also the existence of the mandate." (free translation made by the translation service of the Data Protection Authority, in the absence of an official translation)

Decision on the merits 112/2024 — 27/34

exhaustive nature of Article 80.1 of the GDPR and the terms of Recital 142 related to it in the preamble. In this regard, the primacy of European Union law obliges the Contentious Chamber not to take into account national legislation that is manifestly in conflict with European Union law. Article 80.1 of the GDPR applies directly within the Belgian legal order. The complainant rightly rejects this element, referring to the relevant case law on the matter.⁷⁶

106. The Contentious Chamber cannot, in any case, refer a preliminary question, neither to the Court of Justice nor to the Constitutional Court.⁷⁷

107. Given the numerous grounds on which this decision to dismiss is already based, the Contentious Chamber will not further examine these aspects, and this is merely a consideration within the framework of transparency regarding the means and arguments put forward.

108. Thirdly, the defendants object that the person who signed the contract⁷⁸ with the complainant on behalf of Noyb was not authorized to do so under the statutes—and for this reason, could not, in this case, validly bind the representative in law. In this context, the Contentious Chamber simply notes that there is no written evidence in the administrative file that attests that the person in question could validly bind the representative. Given the numerous grounds on which this decision to dismiss is already based, the Contentious Chamber will not further examine this aspect, and this is merely a consideration within the framework of transparency regarding the means and arguments put forward.

III. Findings of the Inspection Service regarding the content

109. This decision only addresses aspects related to the proper representation and the interest (to take legal action) of the complainant, which pertains to procedural questions regarding the complaint. There are no binding decisions regarding the two defendants insofar as the file, initiated against them based on a complaint, is dismissed.

110. Nevertheless, the Contentious Chamber finds it appropriate to include the findings of the Inspection Service in this decision, as part of the statement of facts⁷⁹, since the thorough examination by the Inspection Service (whose final report alone comprises 191 pages) also serves to demonstrate that the complaint has been examined in depth in its entirety.

111. The findings are summarized below by the Contentious Chamber in the form of a brief summary of what was established by the Inspection Service in order to outline the general lines of the report, without intending to provide a complete overview of all aggravating or mitigating elements of the report.

-

Finding 1: The personal data of the data subject is exported to the subcontractor (the second defendant) through the use of the "Google Analytics" feature on the website <https://www.flair.be/>:

o

The Inspection Service made these findings as part of a comparison based on technical findings (during the period following the aforementioned decision 21/2021 of the Contentious Chamber) for cookie parameters between August 9, 2022, and September 15, 2022; on this occasion, it was observed that several adaptations had been made to the cookie banner (such as the addition of a "reject all cookies" button) and that the "consent management platform" Didomi was being used.

o

Furthermore, the Inspection Service noted that even in the most recent situation, the "Google Advertising Products" and "Google Analytics" cookies are mentioned among the cookies with partners, and it is referenced that they are initiated by these partners through the "Transparency and Consent Framework" of the non-profit IAB Europe.

o

It notably appears from the processing register of the first defendant that "Google Analytics" is defined as "reporting and analyzing visitor and reading behavior (only aggregated anonymous statistics)" and that the data controller relies on legitimate interest for processing.

o

Regarding the Google Analytics tool, the first defendant states to the Inspection Service that in accordance with the terms of use of this tool, it "has no choice but to transmit personal data to the United States, if and to the extent that the data can be classified as personal data."

o

The Inspection Service refers to several decisions from foreign supervisory authorities that have denounced a similar issue concerning transfers to the second defendant in the United States of America, with the latter as the "data importer."

Decision on the merits 112/2024 — 29/34

-

Finding 2: regarding the first defendant - violations of Articles 5.1.a), 12.1, 13.1.b), 13.1.c), 13.1.d), 13.1.e), 13.1.f), 13.2.a), 13.2.c), 13.3, 14.1.a), 14.1.b), 14.1.c), 14.2.a) and 14.2.b) of the GDPR and a violation of Article 10/2, 1° of the LTD: the right to transparent information.

o

In preparing this finding, the Inspection Service examined several historical versions alongside the current version - the most recent at that time - (the 7th version dated August 23, 2022) of the privacy policy of the first defendant. In this context, the Inspection Service notes new facts compared to a previous review regarding the first defendant.

o

The Inspection Service found that there was a lack of transparency regarding new versions and the management of versions of the cookie policy and the privacy policy prior to August 23, 2022. In the version dated June 23, 2021, the first defendant made "substantial additions," according to the Inspection Service, concerning the information provided in the "cookie tables."

o

Following the new version dated August 23, 2022 of the privacy policy, combined with a cookie policy, the Inspection Service notes that the information provided in the "consent management platform" Didomi corresponds to that included in the aforementioned strategic overviews. The Inspection Service "welcomes" these adaptations. Nevertheless, the Inspection Service still noted several "imperfections" after the modifications of August 23, 2022, including the use of the English language on the CMP Didomi (while the web pages are written in Dutch and French) and the inaccessibility of the policy when no choice has yet been made via the cookie banner.

o

In general, the Inspection Service indicates that vague formulations are sometimes used in the privacy policy, such as the use of terms like "some," "etc." and "e.a." without further specification: in the cookie policy, this information is less vague, according to the Inspection Service. Concrete information about the data protection officer is also lacking, as well as information related to processing based on Articles 6.1.c) and 6.1.f) of the GDPR, information regarding the (categories of) recipients of personal data, and information regarding the transfer of individuals to a third country, cf. Articles 46, 47 or 49.1 of the GDPR. Furthermore, according to the Inspection Service, retention periods for certain personal data (by type) are missing, as well as concrete information regarding the withdrawal of consent and the resale or marketing of certain personal data. Finally, information regarding personal data received that has not been directly obtained from the data subjects, as per Article 14 of the GDPR, is lacking.

-

Finding 3: regarding the first defendant - violation of Articles 13.1.b), 37.7 and 38.4 of the GDPR: the contact details of the data protection officer.

-

Finding 4: regarding the first defendant - violations of Articles 30.1.a), 30.1.b), 30.1.c), 30.1.d) and 30.1.e) of the GDPR regarding the register of processing activities.

o

The Inspection Service emphasizes in this regard that the processing activities of the first defendant are presented incompletely, referring to findings concerning processing related to staff activities, processing via targeted video surveillance of visitors to its buildings, and the representation of subcontractors in the register.

o

Additionally, the Inspection Service refers to missing elements in the register of processing activities, including the enumeration of all possible purposes for processing personal data, cf. Article 30.1.b) of the GDPR, a description of the categories of recipients to whom personal data have been or will be communicated, cf. Article 30.1.d) of the GDPR.

-

Finding 5: violation under Article 6.1.f) of the GDPR for invoking legitimate interest to place non-strictly necessary analytical cookies - use of Google Analytics from May 25, 2018, to August 20, 2020.

o

In this context, the Inspection Service emphasizes that legislation regarding the placement of cookies has existed for quite some time and that the first defendant waited two years, even after May 25, 2018, before prohibiting non-strictly necessary cookies on web pages without consent. The Inspection Service also notes that there was no documented balancing at the time of starting (or continuing) the processing activity after the GDPR came into effect.

-

Finding 6: violations of Articles 5, 6 and 4.11 in conjunction with Article 7 of the GDPR and Article 10/2 of the LTD: the principles regarding the processing of personal data and the lawfulness of processing for the CMP Didomi since August 20, 2020.

o

Since August 20, 2020, the first defendant has relied on consent for (the processing of personal data that follows) the placement of non-necessary analytical cookies; in this regard, the Service Decision on the merits 112/2024 — 31/34

The Inspection Service considers that transparency is insufficient and that consent is ambiguous,

referring to the "deceptive colors" used - the Inspection Service refers in this regard to the difference in colors and in the contrast report based on the "rgb code or hex code."

o

The Inspection Service also asserts that the "withdrawal of consent" is not valid by placing the "reject all" button at the second level of information.

-

Finding 7: violation of Articles 5 and 6 of the GDPR: principles regarding the processing of personal data and the lawfulness of processing for the cookie _gat_UA-# of the second defendant.

o

The Inspection Service emphasizes that the aforementioned cookie is mentioned as a necessary cookie, whereas the Inspection Service asserts that Google Analytics is not strictly necessary for the operation of the website.

-

Finding 8: violation of Articles 5.1.e) and 25 of the GDPR: principles related to the processing of personal data: limitation of storage and data protection by design and by default.

o

The Inspection Service highlights that for several cookies, storage durations that are always relatively long "may be considered disproportionate" are used: during the consultation on September 15, 2022, the Inspection Service explicitly questioned the proportionality of the storage duration for 21 of the 298 cookies examined in relation to the purpose of processing.

-

Finding 9: violation of Article 32.1 of the GDPR: security of processing - no pseudonymization from May 25, 2018, to September 30, 2022.

o

In this context, the Inspection Service also indicates that the defendants cannot ensure that certain processing related to the disputed cookies is done anonymously.

-

Finding 10: violation of Articles 5.2, 13.1.f), 24.1, 28.1, and 32.2 of the GDPR regarding points where there is collaboration with a subcontractor.

o

The second defendant confirmed to the Inspection Service, during the investigation, that in light of the disputed processing (concerning analytical cookies), it was the subcontractor.

o

The Inspection Service further asserts regarding the first defendant that it has taken appropriate organizational and technical measures specifically concerning the subcontracting contract and the conclusion of "Standard Contractual Clauses" (SCC) or Clauses contractuelles types (CCT) in the field of data protection. However, the Inspection Service states that the first defendant has not ensured appropriate transparency regarding the data subjects in this matter.

-

Finding 11: violations of Articles 32.2, 44, and 46.1 of the GDPR: assessment of the appropriate level of security and provision of appropriate safeguards allowing data subjects to have enforceable rights and effective legal remedies before the transfer of personal data to a third country or an international organization by a data controller.

o

In this context, the Inspection Service draws attention to the obligation of the first defendant to investigate - in light of the case law of the Court of Justice of the European Union in this matter.

o

After referring to several independent investigations concerning issues related to data transfers to the United States of America, the Inspection Service notes that a transfer of personal data occurs to the United States of America (to the second defendant as the "data importer") outside the EEA through the use of Google Analytics. While in this context, Article 46 of the GDPR (appropriate safeguards) and what are called "standard contractual clauses" are invoked, the Inspection Service considers that this is not sufficient to meet legal requirements in light of the interpretation of the Court of Justice. The

Inspection Service also refers in this context to the lack of evidence regarding the implementation of organizational measures for the assessment of the legislation of the third country.

o

Furthermore, the Inspection Service emphasizes that the second defendant did indeed publish new CCT on March 21, 2022, but that the privacy statement that was subject to the last review contains no information about these (alleged) adaptations.

112. The Inspection Service also presents several "additional considerations," notably regarding the interaction of the findings with the previous decision of the Contentious Chamber concerning the first defendant. Furthermore, the Inspection Service also highlights the presence of several elements in the file that fall under the strategic priorities of the APD and the "publicly traded" nature of the first defendant.

Decision on the merits 112/2024 — 34/34

filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit IT system of Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS

President of the Contentious Chamber

82 "The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed with the registry."